h. In paragraph (a)(9) removing the text "§242.600(b)(82)" and adding in its place "§242.600(b)(95)".

i. Amending paragraph (b)(1)(ii) by removing the text "by a plan processor";

j. Amending paragraph (b)(3) by removing the text "notify the single plan processor responsible for consolidation of information for the covered security pursuant to §242.603(b). The single plan processor must then disseminate this information" and adding in its place "make such information available as provided in §242.603(b)".

§242.204 [Amended].

7. In §242.204, paragraph (g)(2) is amended by removing the text "§600(b)(68) of Regulation NMS (17 CFR 242.600(b)(68))" and adding in its place "17 CFR 242.600(b)(77) (§600(b)(77) of Regulation NMS)".

8. Amend §242.600 by:

a. Redesignating paragraphs (b)(73) through (87) as paragraphs (b)(86) through (100);

b. Adding paragraph (b)(85);

c. Redesignating paragraph (b)(72) as paragraph (b)(84);

d. Adding paragraphs (b)(82) and (83);

e. Redesignating paragraphs (b)(69) through (71) as paragraphs (b)(79) through (81);

f. Adding paragraph (b)(78);

g. Redesignating paragraphs (b)(60) through (68) as paragraphs (b)(69) through (77);

h. Adding paragraph (b)(68);

i. Redesignating paragraphs (b)(52) through (59) as paragraphs (b)(60) through (67);

j. Adding paragraph (b)(59);

k. Redesignating paragraphs (b)(20) through (51) as paragraphs (b)(27) through (58);

l. Adding paragraph (b)(26);

m. Redesignating paragraphs (b)(16) through (19) as paragraphs (b)(22) through (25);

n. Adding paragraphs (b)(19), (20), and (21);

o. Redesignating paragraphs (b)(14) and (15) as paragraphs (b)(17) and (18);

p. Adding paragraph (b)(16);

q. Redesignating paragraphs (b)(4) through (13) as paragraphs (b)(6) through (15);

r. Adding paragraph (b)(5);

s. Redesignating paragraphs (b)(2) and (3) as paragraphs (b)(3) and (4);

t. Adding paragraph (b)(2); and

u. Revising paragraphs (b)(51) and (71).

The additions and revisions read as follows:

§242.600 NMS security designation and definitions.

(b) * * *

(2) *Administrative data* means administrative, control, and other technical messages made available by national securities exchanges and national securities associations pursuant to the effective national market system plan or plans required under §242.603(b) or the technical specifications thereto as of [INSERT DATE OF PUBLICATION IN THE FEDERAL REGISTER].

* * * * *

(5) *Auction information* means all information specified by national securities exchange rules or effective national market system plans that is generated by a national securities exchange leading up to and during auctions, including opening, reopening, and closing auctions, and

publicly disseminated during the time periods and at the time intervals provided in such rules and plans.

* * * * *

(16) *Competing consolidator* means a securities information processor required to be registered pursuant to §242.614 (Rule 614) or a national securities exchange or national securities association that receives information with respect to quotations for and transactions in NMS stocks and generates a consolidated market data product for dissemination to any person.

* * * * *

(19) *Consolidated market data* means the following data, consolidated across all national securities exchanges and national securities associations:

(i) Core data;

(ii) Regulatory data;

(iii) Administrative data;

(iv) Self-regulatory organization-specific program data; and

(v) Additional regulatory, administrative, or self-regulatory organization-specific program data elements defined as such pursuant to the effective national market system plan or plans required under §242.603(b).

(20) *Consolidated market data product* means any data product developed by a competing consolidator that contains consolidated market data or data components of consolidated market data. For purposes of this rule, data components of consolidated market data include the enumerated elements, and any subcomponent of the enumerated elements, of consolidated market data in §242.600(b)(19). All consolidated market data products must reflect data consolidated across all national securities exchanges and national securities associations.

(21) *Core data* means:

(i) The following information with respect to quotations for, and transactions in, NMS stocks:

(A) Quotation sizes;

(B) Aggregate quotation sizes;

(C) Best bid and best offer;

(D) National best bid and national best offer;

(E) Protected bid and protected offer;

(F) Transaction reports;

(G) Last sale data;

(H) Odd-lot information;

(I) Depth of book data; and

(J) Auction information.

(ii) For purposes of the calculation and dissemination of core data by competing consolidators, as defined in paragraph (b)(16) of this section, and the calculation of core data by self-aggregators, as defined in paragraph (b)(84) of this section, the best bid and best offer, national best bid and national best offer, protected bid and protected offer, and depth of book data shall include odd-lots that when aggregated are equal to or greater than a round lot; such aggregation shall occur across multiple prices and shall be disseminated at the least aggressive price of all such aggregated odd-lots.

(iii) Competing consolidators shall represent the quotation sizes of the following data elements, if disseminated in a consolidated market data product as defined in §242.600(b)(20), as the number of shares rounded down to the nearest multiple of a round lot: the best bid and best

offer, national best bid and national best offer, protected bid and protected offer, depth of book data, and auction information.

(iv) Competing consolidators shall attribute the following data elements, if disseminated in a consolidated market data product as defined in §242.600(b)(20), to the national securities exchange or national securities association that is the source of each such data element: best bid and best offer, national best bid and national best offer, protected bid and protected offer, transaction reports, last sale data, odd-lot information, depth of book data, and auction information.

* * * * *

(26) *Depth of book data* means all quotation sizes at each national securities exchange and on a facility of a national securities association at each of the next five prices at which there is a bid that is lower than the national best bid and offer that is higher than the national best offer. For these five prices, the aggregate size available at each price, if any, at each national securities exchange and national securities association shall be attributed to such exchange or association.

* * * * *

(50) *National best bid and national best offer* means, with respect to quotations for an NMS stock, the best bid and best offer for such stock that are calculated and disseminated on a current and continuing basis by a competing consolidator or calculated by a self-aggregator and, for NMS securities other than NMS stocks, the best bid and best offer for such security that are calculated and disseminated on a current and continuing basis by a plan processor pursuant to an effective national market system plan; provided, that in the event two or more market centers transmit to the plan processor, a competing consolidator or a self-aggregator identical bids or offers for an NMS security, the best bid or best offer (as the case may be) shall be determined by

ranking all such identical bids or offers (as the case may be) first by size (giving the highest ranking to the bid or offer associated with the largest size), and then by time (giving the highest ranking to the bid or offer received first in time).

* * * * *

(59) *Odd-lot information* means:

(i) Odd-lot transaction data disseminated pursuant to the effective national market system plan or plans required under §242.603(b) as of [INSERT DATE OF PUBLICATION IN THE FEDERAL REGISTER]; and

(ii) Odd-lots at a price greater than or equal to the national best bid and less than or equal to the national best offer, aggregated at each price level at each national securities exchange and national securities association.

* * * * *

(68) *Primary listing exchange* means, for each NMS stock, the national securities exchange identified as the primary listing exchange in the effective national market system plan or plans required under §242.603(b).

* * * * *

(70) *Protected bid or protected offer* means a quotation in an NMS stock that:

(i) Is displayed by an automated trading center;

(ii) Is disseminated pursuant to an effective national market system plan; and

(iii) Is an automated quotation that is the best bid or best offer of a national securities exchange, or the best bid or best offer of a national securities association.

* * * * *

(78) *Regulatory data* means:

(i) Information required to be collected or calculated by the primary listing exchange for an NMS stock and provided to competing consolidators and self-aggregators pursuant to the effective national market system plan or plans required under §242.603(b), including, at a minimum:

(A) Information regarding Short Sale Circuit Breakers pursuant to §242.201;

(B) Information regarding Price Bands required pursuant to the Plan to Address Extraordinary Market Volatility (LULD Plan);

(C) Information relating to regulatory halts or trading pauses (news dissemination/pending, LULD, Market-Wide Circuit Breakers) and reopenings or resumptions;

(D) The official opening and closing prices of the primary listing exchange; and

(E) An indicator of the applicable round lot size.

(ii) Information required to be collected or calculated by the national securities exchange or national securities association on which an NMS stock is traded and provided to competing consolidators and self-aggregators pursuant to the effective national market system plan or plans required under §242.603(b), including, at a minimum:

(A) Whenever such national securities exchange or national securities association receives a bid (offer) below (above) an NMS stock's lower (upper) LULD price band, an appropriate regulatory data flag identifying the bid (offer) as non-executable; and

(B) Other regulatory messages including subpenny execution and trade-though exempt indicators.

(iii) For purposes of paragraph (i)(C) of this section, the primary listing exchange that has the largest proportion of companies included in the S&P 500 Index shall monitor the S&P 500 Index throughout the trading day, determine whether a Level 1, Level 2, or Level 3 decline, as

defined in self-regulatory organization rules related to Market-Wide Circuit Breakers, has occurred, and immediately inform the other primary listing exchanges of all such declines.

* * * * *

(82) *Round lot* means:

(i) For any NMS stock for which the prior calendar month's average closing price on the primary listing exchange was $250.00 or less per share, an order for the purchase or sale of an NMS stock of 100 shares;

(ii) For any NMS stock for which the prior calendar month's average closing price on the primary listing exchange was $250.01 to $1,000.00 per share, an order for the purchase or sale of an NMS stock of 40 shares;

(iii) For any NMS stock for which the prior calendar month's average closing price on the primary listing exchange was $1,000.01 to $10,000.00 per share, an order for the purchase or sale of an NMS stock of 10 shares;

(iv) For any NMS stock for which the prior calendar month's average closing price on the primary listing exchange was $10,000.01 or more per share, an order for the purchase or sale of an NMS stock of 1 share; and

(v) For any NMS stock for which the prior calendar month's average closing price is not available, an order for the purchase or sale of an NMS stock of 100 shares.

(83) *Self-aggregator* means a broker, dealer, national securities exchange, national securities association, or investment adviser registered with the Commission that receives information with respect to quotations for and transactions in NMS stocks, including all data necessary to generate consolidated market data, and generates consolidated market data solely for internal use. A self-aggregator may make consolidated market data available to its affiliates

that are registered with the Commission for their internal use. Except as provided in the preceding sentence, a self-aggregator may not disseminate or otherwise make available consolidated market data, or components of consolidated market data, as provided in §242.600(b)(20), to any person.

* * * * *

(85) *Self-regulatory organization-specific program data* means:

(i) Information related to retail liquidity programs specified by the rules of national securities exchanges and disseminated pursuant to the effective national market system plan or plans required under §242.603(b) as of [INSERT DATE OF PUBLICATION IN THE FEDERAL REGISTER]; and

(ii) Other self-regulatory organization-specific information with respect to quotations for or transactions in NMS stocks as specified by the effective national market system plan or plans required under §242.603(b).

* * * * *

§242.602 [Amended].

9. Amend §242.602 by:

a. In paragraph (a)(5)(i) removing the text "§242.600(b)(77)" and adding in its place "§242.600(b)(90)" and

b. In paragraph (a)(5)(ii) removing the text "§242.600(b)(77)" and adding in its place "§242.600(b)(90)".

10. Amend §242.603 by revising paragraph (b) to read as follows:

§242.603 Distribution, consolidation, and display of information with respect to quotations for and transactions in NMS stocks.

* * * * *

(b) *Dissemination of information*. Every national securities exchange on which an NMS stock is traded and national securities association shall act jointly pursuant to one or more effective national market system plans for the dissemination of consolidated market data. Every national securities exchange on which an NMS stock is traded and national securities association shall make available to all competing consolidators and self-aggregators its information with respect to quotations for and transactions in NMS stocks, including all data necessary to generate consolidated market data, in the same manner and using the same methods, including all methods of access and the same format, as such national securities exchange or national securities association makes available any information with respect to quotations for and transactions in NMS stocks to any person.

* * * * *

§ 242.611 [Amended].

11. Amend §242.611 by, in paragraph (c), removing the text "§242.600(b)(31)" and adding in its place "§242.600(b)(38)".

12. Add §242.614 to read as follows:

§242.614 Registration and responsibilities of competing consolidators.

(a) Competing consolidator registration.

(1) Initial Form CC.

(i) *Filing and effectiveness requirement*. No person, other than a national securities exchange or a national securities association: